



U.S. Department
of Transportation

**Pipeline and Hazardous
Materials Safety
Administration**

December 31, 2024

1200 New Jersey Avenue, SE
Washington, DC 20590

DOT-SP 20892
(THIRD REVISION)

EXPIRATION DATE: 2028-11-30

(FOR RENEWAL, SEE 49 CFR § 107.109)

1. GRANTEE: Natural Choice Corporation
d.b.a. KUL Refreshment, Inc.
Loves Park, IL
2. PURPOSE AND LIMITATION:
 - a. This special permit authorizes the transportation in commerce of certain DOT 3AL cylinders that contain carbon dioxide, with alternative hazard communication. This special permit provides no relief from the Hazardous Materials Regulations (HMR) other than as specifically stated herein. The most recent revision supersedes all previous revisions.
 - b. The safety analyses performed in development of this special permit only considered the hazards and risks associated with transportation in commerce. The safety analyses did not consider the hazards and risks associated with consumer use, use as a component of a transport vehicle or other device, or other uses not associated with transportation in commerce.
 - c. No party status will be granted to this special permit.
3. REGULATORY SYSTEM AFFECTED: 49 CFR Parts 106, 107 and 171-180.
4. REGULATIONS FROM WHICH EXEMPTED: 49 CFR § 171.2(k) in that no person may, by marking or otherwise, represent that a hazardous material is present in a package, container, or motor vehicle if the hazardous material is not present, and Subparts C–E of Part 172 related to shipping papers, marking, and labeling and Subpart H of Part 172 that prescribes training for hazmat employees, except as provided herein.

Tracking Number: 2024125009

5. BASIS: This special permit is based on the application of Natural Choice Corporation dated December 16, 2024, and submitted in accordance with § 107.109.
6. HAZARDOUS MATERIALS (49 CFR § 172.101):

Hazardous Materials Description			
Proper shipping name	Hazard Class/ Division	Identification Number	Packing Group
Carbon dioxide	2.2	UN1013	N/A

7. SAFETY CONTROL MEASURES:

a. PACKAGING:

- (1) Prescribed packaging are DOT 3AL cylinders with a maximum capacity of 0.64 liters and have:
- (i) A minimum working pressure of 2,100 psi;
 - (ii) A maximum filling pressure of 1,350 psi; and
 - (iii) A maximum filling weight of 411 grams of carbon dioxide.
- (2) The cylinders are marked and labeled as required by the HMR.
- (3) Cylinders must be securely packaged in an outer fiberboard box.

b. OPERATIONAL CONTROLS:

- (1) Natural Choice Corporation is responsible as the offeror for all shipments made under this special permit.
- (2) In place of the training requirements specified in subpart H of Part 172, persons offering the cylinders for transportation must comply with the closure instructions accompanying the fiberboard box. The grantee must provide publicly available training for customers and downstream shippers that is readily accessible through a public website:

(<https://www.naturalchoicewater.com/products/accessories/sodapro>).

(3) The grantee must provide alternative hazard communication including markings that communicate the UN number, proper shipping name, division, and emergency response information, as described in this special permit.

(4) In lieu of a shipping paper with a shipper's certification as required in § 172.204, the grantee must provide carriers with a bill of lading that includes the following information: Carbon dioxide (UN1013) shipped under DOT-SP 20892, Emergency contact number 1-800-535-5053.

8. SPECIAL PROVISIONS:

a. A person who is not a holder of this special permit who receives a completed package covered by this special permit may reoffer it for transportation provided no modifications or changes are made to the package and it is reoffered for transportation in conformance with this special permit and the HMR.

b. A current copy of this special permit must be maintained at all the grantee's facilities that provide packagings for, offer, or receive the cylinders authorized for shipment under this permit.

c. The grantee must provide in writing or electronically to persons in the transport chain all information related to safety measures, package closure instructions and emergency response information described in the special permit.

d. The instructions for properly preparing the cylinders and closing the fiberboard box must be printed on or permanently affixed to the outer packaging in a manner that is readily visible to the person closing the box.

e. The package must be marked with an emergency response number that must be monitored 24 hours per day. The marking must be 12mm in height at a minimum.

f. A Quick Response scannable code and a URL must be marked on the package and must be linked to a training course, safety information, emergency response information, closure instructions, a copy of this special permit and a customer care line where any questions including those related to compliance with this special permit can be addressed.

g. A 1-800 customer service line must be provided to assist customers, shippers and carriers to comply with the conditions of the special permit (1-800-535-5053).

h. The outer package must be marked "DOT-SP 20892".

i. The grantee must clearly and durably mark at least one side of the outer package with the information below:

- (1) UN 1013;
- (2) Carbon Dioxide;
- (3) Division 2.2 and;
- (4) Pressurized Gas.

j. The information above must be placed adjacent to the mark indicated below.



The “UN 1013” marking must be displayed within a square-on-point shaped area surrounded by a line that measures at least 100mm by 100mm on each side except for a single cylinder package or for a package used to ship dispensing machines containing a single cylinder. For these packages the mark may be reduced to 30mm on each side.

- k. The maximum number of enclosed cylinders must be indicated on the exterior of each package.
- 9. MODES OF TRANSPORTATION AUTHORIZED: Motor vehicle.
 - 10. MODAL REQUIREMENTS: None
 - 11. COMPLIANCE: Failure by a person to comply with any of the following may result in suspension or revocation of this special permit and penalties prescribed by the Federal hazardous materials transportation law, 49 U.S.C. 5101 et seq:
 - o All terms and conditions prescribed in this special permit and the Hazardous Materials Regulations, 49 CFR Parts 171-180.
 - o Persons operating under the terms of this special permit must comply with the security plan requirement in Subpart I of Part 172 of the HMR, when applicable.

- o Registration required by § 107.601 et seq., when applicable.

No person may use or apply this special permit, including display of its number, when this special permit has expired or is otherwise no longer in effect.

Under Title VII of the Safe, Accountable, Flexible, Efficient Transportation Equity Act: A Legacy for Users (SAFETEA-LU) --- “The Hazardous Materials Safety and Security Reauthorization Act of 2005” (Pub. L. 109-59), 119 Stat. 1144 (August 10, 2005), amended the Federal hazardous materials transportation law by changing the term “exemption” to “special permit” and authorizes a special permit to be granted up to two years for new special permits and up to four years for renewals.

12. REPORTING REQUIREMENTS: Shipments or operations conducted under this special permit are subject to the Hazardous Materials Incident Reporting requirements specified in 49 CFR § 171.15 - Immediate notice of certain hazardous materials incidents, and § 171.16 - Detailed hazardous materials incident reports. In addition, the grantee(s) of this special permit must notify the Associate Administrator for Hazardous Materials Safety, in writing, of any incident involving a package, shipment or operation conducted under terms of this special permit.

Issued in Washington, D.C.:



for William Schoonover
Associate Administrator for Hazardous Materials Safety

Address all inquiries to: Associate Administrator for Hazardous Materials Safety, Pipeline and Hazardous Material Safety Administration, U.S. Department of Transportation, East Building PHH-13, 1200 New Jersey Avenue, Southeast, Washington, D.C. 20590.

Copies of this special permit may be obtained by accessing the Hazardous Materials Safety Homepage at <https://www.phmsa.dot.gov/approvals-and-permits/hazmat/special-permits-search>. Photo reproductions and legible reductions of this special permit are permitted. Any alteration of this special permit is prohibited.

PO: BB